

Syllabus

too granular a level. A court should not inquire whether *Bivens* relief is appropriate in light of the balance of circumstances in the “particular case.” *United States v. Stanley*, 483 U.S. 669, 683. Rather, it should ask “[m]ore broadly” whether there is any reason to think that “judicial intrusion” into a given field might be “harmful” or “inappropriate,” *id.*, at 681. The proper inquiry here is whether a court is competent to authorize a damages action not just against Agent Egbert, but against Border Patrol agents generally. The answer is no. Pp. 494–497.

(2) Second, Congress has provided alternative remedies for aggrieved parties in Boule’s position that independently foreclose a *Bivens* action here. By regulation, Border Patrol must investigate “[a]lleged violations” and accept grievances from “[a]ny persons.” 8 CFR §§ 287.10(a)–(b). Boule claims that this regulatory grievance procedure was inadequate, but this Court has never held that a *Bivens* alternative must afford rights such as judicial review of an adverse determination. *Bivens* “is concerned solely with deterring the unconstitutional acts of individual officers.” *Correctional Services Corp. v. Malesko*, 534 U.S. 61, 71. And, regardless, the question whether a given remedy is adequate is a legislative determination. As in *Hernández*, this Court has no warrant to doubt that the consideration of Boule’s grievance secured adequate deterrence and afforded Boule an alternative remedy. See 589 U.S., at —. Pp. 497–498.

(c) There is no *Bivens* cause of action for Boule’s First Amendment retaliation claim. That claim presents a new *Bivens* context, and there are many reasons to think that Congress is better suited to authorize a damages remedy. Extending *Bivens* to alleged First Amendment violations would pose an acute “risk that fear of personal monetary liability and harassing litigation will unduly inhibit officials in the discharge of their duties.” *Anderson v. Creighton*, 483 U.S. 635, 638. In light of these costs, “Congress is in a better position to decide whether or not the public interest would be served” by imposing a damages action. *Bush*, 462 U.S., at 390. The Court of Appeals’ reasons for extending *Bivens* in this context—that retaliation claims are “well-established” and that Boule alleges that Agent Egbert “was not carrying out official duties” when the retaliation occurred—lack merit. Also lacking merit is Boule’s claim that this Court identified a *Bivens* cause of action under allegedly similar circumstances in *Passman*. Even assuming factual parallels, *Passman* carries little weight because it predates the Court’s current approach to implied causes of action. A plaintiff cannot justify a *Bivens* extension based on “parallel circumstances” with *Bivens*, *Passman*, or *Carlson*—the three cases in which the Court has implied a damages action—unless the plaintiff also satisfies the prevailing “ana-